

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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MICKEAL SMALL,

Plaintiff,

-against-

THE CITY OF NEW YORK,
NYPD DETECTIVE ALLAN WARD (Shield #520),
NYPD UNDERCOVER OFFICER #345, and
NYPD OFFICER BENJAMIN PEREZ (Shield #16594),

Defendants.

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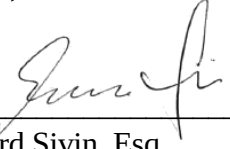
To the above-named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
September 19, 2022

SIVIN, MILLER & ROCHE, LLP

By:



Edward Sivin, Esq.
Attorneys for Plaintiff
20 Vesey Street, Suite 1400
New York, NY 10007
(212) 349-0300

To:

-The City of New York: c/o NYC Corp. Counsel, 100 Church Street, New York, NY 10007;

-NYPD Detective Allan Ward (Shield #520): 21-20 34th Avenue, Apt 5B, Astoria, NY 11106;

-NYPD Undercover Officer #345: c/o NYPD Legal Bureau, 1 Police Plaza, New York, NY 10038;

-NYPD Officer Benjamin Perez (Shield #16594): c/o NYPD 83rd PCT Detective Squad, 480 Knickerbocker Ave., Brooklyn, NY 11237.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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MICKEAL SMALL,

Plaintiff,

VERIFIED COMPLAINT

-against-

Index No.: _____

THE CITY OF NEW YORK,
NYPD DETECTIVE ALLAN WARD (Shield #520),
NYPD UNDERCOVER OFFICER #345, and
NYPD OFFICER BENJAMIN PEREZ (Shield #16594),

Defendants.

----- X

Plaintiff, by his attorneys SIVIN, MILLER & ROCHE, LLP, complaining of
defendants, alleges as follows, upon information and belief:

THE PARTIES

1. At all times herein mentioned, plaintiff Mickeal Small (hereinafter “plaintiff” or “Small”) was and is a resident of the County of Kings, City and State of New York.

2. At all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

3. At all times herein mentioned, the City owned, operated, controlled, and maintained a police force known as the New York Police Department (hereinafter the “NYPD”).

4. At all times herein mentioned, defendant NYPD Detective Allan Ward (Shield #520) (hereinafter “Ward”) was a detective employed by the NYPD in the Narcotics Borough Brooklyn North, Command 547.

5. At all times herein mentioned, Ward was acting within the course and scope of his employment with the NYPD.

6. At all times herein mentioned, Ward was acting under color of state law.

7. At all times herein mentioned, defendant NYPD Undercover Officer #345 (hereinafter “UC #345”) was an undercover officer employed by the NYPD in the Narcotics Borough Brooklyn North, Command 547.

8. At all times herein mentioned, UC #345 was acting within the course and scope of his employment with the NYPD.

9. At all times herein mentioned, UC #345 was acting under color of state law.

10. At all times herein mentioned, defendant NYPD Officer Benjamin Perez (Shield #16594) (hereinafter “Perez”) was a police officer employed by the NYPD in the 83rd Precinct.

11. At all times herein mentioned, Perez was acting within the course and scope of his employment with the NYPD.

12. At all times herein mentioned, Perez was acting under color of state law.

13. That prior to the institution of this action and within ninety (90) days from the dates when the causes of action alleged herein accrued, a notice of claim and intention to sue was duly served upon and filed with defendants City, Ward, UC #345, and Perez on behalf of plaintiff, that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and defendants have neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.

14. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules § 1602 with respect to joint and several liability.

THE FACTS

15. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

16. On or about February 8, 2020, in the County of Kings, City and State of New York, plaintiff was forcibly stopped and seized by NYPD officers, including defendants Ward and Perez, without probable cause or reasonable suspicion to believe that plaintiff had committed or was about to commit any crime or criminal violation.

17. After forcibly stopping and seizing plaintiff, defendants Ward and Perez also searched, handcuffed, and arrested plaintiff without a warrant and without probable cause or reasonable suspicion to believe that plaintiff had committed or was about to commit any crime or criminal violation.

18. Defendants Ward and Perez also forcibly confined and imprisoned plaintiff, against his will, at various locations including a police precinct and Central Booking.

19. On or about February 9, 2020, defendants Ward and/or UC #345 also initiated a prosecution of plaintiff, without probable cause, by charging plaintiff with crimes of which he was innocent and of which Ward knew plaintiff to be innocent.

20. In paperwork regarding the case that defendant Ward submitted to the District Attorney, Ward falsely alleged that plaintiff "knowingly and unlawfully possess[ed] a controlled substance; knowingly and unlawfully possess[ed] a narcotic drug with intent to sell it; [and] knowingly and unlawfully s[old] a narcotic drug." Ward also either falsely claimed in his

paperwork submitted to the District Attorney that defendant UC #345 had identified plaintiff as one of the individuals that UC #345 allegedly conducted controlled buys of narcotics from on December 3 and/or 4, 2019, or Ward omitted from his paperwork that he had either wrongfully induced UC #345 to make false statements identifying plaintiff as such, or wrongfully conspired with UC #345 to do the same.

21. Defendant Ward also repeated these same aforementioned false representations and mischaracterizations verbally to the District Attorney.

22. The aforesaid actions of defendants Ward and/or UC #345 were intentional and malicious in nature.

23. The aforementioned false representations and mischaracterizations by defendant Ward and/or defendant UC #345 also constituted material evidence in the prosecution of plaintiff, and evidence that was likely to influence a jury's or criminal court judge's decision on plaintiff's guilt or innocence.

24. As a result of the aforesaid malicious prosecution, plaintiff was compelled to appear in court for his arraignment and on at least four additional occasions thereafter to defend against the criminal charges, and was otherwise deprived of and restricted in his liberty and ability to travel.

25. On or about June 22, 2021, all criminal charges against plaintiff were dismissed and the criminal proceeding terminated in plaintiff's favor.

26. As a result of the foregoing, plaintiff suffered a deprivation of his liberty, including being forcibly confined and imprisoned from his arrest on February 8, 2020 until he was released from custody on or about February 9, 2020.

FIRST CAUSE OF ACTION AGAINST WARD and UC #345

(Malicious Prosecution Under 42 U.S.C. § 1983)

27. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth herein.

28. The aforementioned actions of defendants Ward and UC #345 constitute a malicious prosecution of plaintiff, and thus an unlawful seizure of plaintiff in violation of the Fourth and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages against Ward and UC #345 pursuant to 42 U.S.C. § 1983.

SECOND CAUSE OF ACTION AGAINST WARD and UC #345

(Denial of Right to Fair Trial Under 42 U.S.C. § 1983)

29. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth herein.

30. The aforementioned actions of defendant Ward in falsely alleging that plaintiff “knowingly and unlawfully possess[ed] a controlled substance; knowingly and unlawfully possess[ed] a narcotic drug with intent to sell it; [and] knowingly and unlawfully s[old] a narcotic drug,” as well as in either falsely claiming that defendant UC #345 had identified plaintiff as one of the individuals that UC #345 allegedly conducted controlled buys of narcotics from on December 3 and/or 4, 2019 or wrongfully inducing UC #345 to make false statements identifying plaintiff as such, and/or of Ward and UC #345 in conspiring to falsely identify plaintiff as one of the individuals that UC #345 allegedly conducted controlled buys of narcotics from on December 3 and/or 4, 2019, and Ward’s inclusion of such false representations and mischaracterizations in his documentation of plaintiff’s arrest and in his verbal statements to the District Attorney, resulted in a deprivation of plaintiff’s liberty, and constitute a denial of plaintiff’s right to a fair trial in violation of the Fifth, Sixth, and Fourteenth Amendments to the

U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983. *See, e.g., Cromedy v. City of New York*, 176 A.D.3d 545, 546 (1st Dept 2019).

THIRD CAUSE OF ACTION AGAINST WARD and PEREZ

(False Arrest/Imprisonment and Illegal Search & Seizure Under 42 U.S.C. § 1983)

31. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth herein.

32. That the aforesaid actions of defendants Ward and Perez in forcibly in forcibly stopping, seizing, falsely arresting/imprisoning, and searching plaintiff without justification constituted unreasonable and illegal searches and seizures of plaintiff in violation of the proscription against unreasonable searches and seizures contained in the Fourth Amendment to the U.S. Constitution, a denial of liberty of plaintiff without due process of law, and a denial of equal protection to plaintiff in violation of the Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

FOURTH CAUSE OF ACTION AGAINST THE CITY, WARD and UC #345

(Malicious Prosecution Under NY State Law)

33. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth herein.

34. The aforementioned actions of Ward and UC #345 constitute a malicious prosecution of plaintiff under New York State law, for which Ward and UC #345 are answerable in damages and for which the City is vicariously liable under the doctrine of *respondeat superior*.

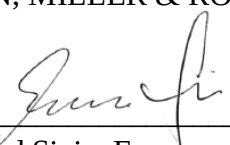
WHEREFORE, plaintiff demands judgment against all defendants on the foregoing causes of action in the form of compensatory damages in amounts that exceed the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this

matter, and plaintiff also demands punitive damages against defendants Ward, UC #345, and Perez in amounts that exceed the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands attorney's fees against all defendants pursuant to 42 U.S.C. § 1988, and the costs and disbursements of this action.

Dated: New York, New York
September 19, 2022

SIVIN, MILLER & ROCHE, LLP

By:



Edward Sivin, Esq.
Attorneys for Plaintiff
20 Vesey Street, Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following under penalty of perjury:

That I am the attorney for the plaintiff in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe them to be true.

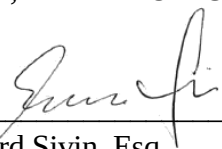
That the reason this verification is made by your affirmant and not by the plaintiff is that the plaintiff is not in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts, and documents contained in plaintiff's file maintained by your affirmant's office.

Dated: New York, New York
September 19, 2022

SIVIN, MILLER & ROCHE, LLP

By:



Edward Sivin, Esq.
Attorneys for Plaintiff
20 Vesey Street, Suite 1400
New York, NY 10007
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